

Mohd. Mohsin v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 15 February 2018 · WRIT - C No. 29645 of 2015 · **Writ allowed; permanent disconnection order dated 29.08.2014 set aside.**

HEADNOTE

A granted electricity connection cannot be permanently cancelled merely because a previous consumer of similar name withheld permission, where the licensee does not allege that the applicant lacks ownership or possession, is in arrears, or is otherwise disqualified under the Electricity Supply Code, 2005 or the Electricity Act, 2003.

FACTUAL SUMMARY

The petitioner, running a glass factory at Bijnor, was granted an electricity connection on 15 January 2014 after a meter was installed. By order dated 29 August 2014 the Executive Engineer, Electricity Distribution Division, Bijnor permanently disconnected that connection on the ground that an earlier connection at the premises stood in the name of Mohd. Mohsin son of Shamim Ahmad, who had not permitted the petitioner to take a connection. The petitioner challenged the cancellation by writ.

REUSABLE CONSTRUCTIONS

1. A licensee cannot permanently cancel a granted connection merely because a previous consumer of similar name withheld permission, unless it is shown that the applicant lacks title or possession, is in arrears, or is otherwise disqualified under the Supply Code or the Act. ¶ 3

HOLDING-UNITS

HOLDING-UNIT · UP-2005

permanent disconnection — previous consumer's permission

HOLDING

A granted electricity connection cannot be permanently cancelled solely because a previous connection-holder of similar name did not permit the applicant to take supply, when it is not the licensee's case that the applicant does not own, jointly own or occupy the premises, is not running the factory, is in default of electricity dues, or is otherwise disqualified under the Electricity Supply Code, 2005 or the Electricity Act, 2003. The Executive Engineer's order dated 29.08.2014 is set aside. ¶ 3-4

FLAG Order invokes the Electricity Supply Code, 2005 and Electricity Act, 2003 generally, without a numbered clause.